Comitatus Act. Instead, he relies on inherent constitutional authority that, according to the Government, allows him to use the military to protect federal personnel and property. But the Government also claims—consistent with the longstanding view of the Executive Branch—that performing such protective functions does not constitute "execut[ing] the laws" within the meaning of the Posse Comitatus Act. See Supp. Letter Reply Brief for Applicants 8; 1 Supp. Op. OLC 343, n. 1 (1971) (collecting sources). If that is correct, it is hard to see how performing those functions could constitute "execut[ing] the laws" under §12406(3). See *Azar* v. *Allina Health Services*, 587 U. S. 566, 574 (2019) ("This Court does not lightly assume that Congress silently attaches different meanings to the same term in the same or related statutes"). Thus, at least in this posture, the Government has not carried its burden to show that §12406(3) permits the President to federalize the Guard in the exercise of inherent authority to protect federal personnel and property in Illinois. We need not and do not address the reviewability of findings made by the President under §12406(3) or any other statute.

The application for stay is denied.

JUSTICE KAVANAUGH, concurring in the judgment.

To protect federal personnel and property in Illinois, the President federalized about 300 National Guard members. The State of Illinois sued, and as relevant here, the District Court barred the President from deploying the Guard. After the Seventh Circuit declined to stay the District Court's order, the Government applied to this Court for a stay. I agree with the Court's decision to deny the Government's application for a stay, but I would do so on narrower grounds.

To federalize the National Guard, the President first must determine that he is "unable with the regular forces to execute the laws of the United States." 10 U. S. C.

§12406(3). In my view, the statutory term "regular forces" likely refers to the U. S. military, not to federal civilian law enforcement officers. On the current record, however, it does not appear that the President has yet made the statutorily required determination that he is "unable" with the U. S. military, as distinct from federal civilian law enforcement officers, to ensure the execution of federal law in Illinois. (The President of course would have great discretion to make that determination, as the State itself acknowledges. See Supp. Letter Reply Brief for Respondents 7; *Department of Navy* v. *Egan*, 484 U. S. 518, 529–530 (1988).)

On that narrow ground, I would deny the Government's application for a stay. We need not decide more, so I would not decide more.

The Court goes further. The Court starts by concluding that "regular forces" means the U. S. military. (As noted above, I agree with that initial point.) From there, however, the Court conducts a complicated and debatable statutory analysis. The Court says that under the Government's argument, "it is hard to see how performing those functions"—that is, protecting federal personnel and property—"could constitute 'execut[ing] the laws' under §12406(3)." *Ante*, at 3. On that premise, the Court further states that "at least in this posture, the Government has not carried its burden to show that §12406(3) permits the President to federalize the Guard in the exercise of inherent authority to protect federal personnel and property in Illinois," *ante*, at 3—even if the President finds that he is "unable" with the U. S. military to protect federal personnel and property from harm.[1]

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[1] The statute also separately authorizes the President to federalize the National Guard if there is an "invasion" or "rebellion." 10 U. S. C. §§12406(1)–(2).

The Court's legal interpretation, as I understand it, could lead to potentially significant implications for future crises that we cannot now foresee. Consider a hypothetical example. Suppose a mob rapidly gathers outside the U. S. Courthouse in Philadelphia in response to an unpopular decision (or to influence the outcome of a pending matter). Suppose also that the mob is threatening to storm the courthouse and attack the federal judges, prosecutors, and other personnel inside, and to damage or burn down the building, thereby preventing the execution of federal law. Suppose further that U. S. military forces cannot readily mobilize to deploy to the site in time, that the local police and federal court security officers are outnumbered, and that the President wants to federalize National Guard units to protect the courthouse and the judges, prosecutors, and other personnel. Under the Court's order today, even in those circumstances the President presumably could not federalize the National Guard under §12406(3).[2]

Of course, that kind of hypothetical scenario does not often arise, and we can hope that it will not arise in the future. But the potential consequences, combined with the

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[2]As I read it, the Court's opinion does not address the President's authority under the Insurrection Act. See 10 U. S. C. §§252, 253. Moreover, the Court's opinion does not address or purport to disturb the President's long-asserted Article II authority to use the U. S. military (as distinct from the National Guard) to protect federal personnel and property and thereby ensure the execution of federal law. See 1 Supp. Op. OLC 343 (1971) (W. Rehnquist). As Professor Goldsmith has succinctly explained: "The protective power is the president's inherent or independent Article II power to protect federal personnel, property, and functions. The key point is that the president can assert the protective power *without reliance on Section 12406*. He can deploy *regular armed forces* without any need to federalize the Guard. Presidents often have." J. Goldsmith, President Trump Holds the Legal Cards on the Use of the Military in the Domestic Sphere, Executive Functions (Oct. 8, 2025). One apparent ramification of the Court's opinion is that it could cause the President to use the U. S. military more than the National Guard to protect federal personnel and property in the United States.

novelty and difficulty of the statutory issues addressed by the Court, underscore why I would not opine more broadly than necessary to resolve this application.[3]

Before addressing those challenging and far-reaching statutory questions at this stage of the case, I would have at least invited further briefing and possibly also held oral argument, either on the application itself or by granting certiorari before judgment, akin to what the Court has done on several recent occasions. See *Trump* v. *CASA, Inc.*, 606 U. S. 831 (2025); *Ohio* v. *EPA*, 603 U. S. 279 (2024); *National Federation of Independent Business* v. *OSHA*, 595 U. S. 109 (2022). As I have stated with respect to previous interim applications of substantial import and difficulty, the Court can help guard against mistakes or misjudgments by employing additional process when sufficient time is available—recognizing, of course, that time will not always be available. See *Trump* v. *Boyle*, 606 U. S. ___ (2025) (KAVANAUGH, J., concurring); *Trump* v. *CASA, Inc.*, 606 U. S., at 876 (KAVANAUGH, J., concurring); *A.A.R.P.* v. *Trump*, 605 U. S. 91, 100 (2025) (KAVANAUGH, J., concurring); *Labrador* v. *Poe*, 601 U. S. 1110, 1127–1129 (2024) (KAVANAUGH, J., concurring).[4]

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[3] The Court's decision reflects only likely legal conclusions and comes at a "preliminary stage." *Ante*, at 2. That said, the decision will presumably be a form of precedent throughout the Federal Judiciary that requires a temporary injunction (either a preliminary injunction or an injunction pending appeal or certiorari) in like circumstances, unless and until this Court reaches a contrary conclusion. See *Trump* v. *Boyle*, 606 U. S. ___ (2025); *Trump* v. *CASA, Inc.*, 606 U. S. 831, 873 (2025) (KAVANAUGH, J., concurring). The Court also emphasizes that the Government has failed to carry its "burden." *Ante*, at 3. In this context, that statement seems to convey the truisms that, in future litigation, the Court could reconsider its view of the law or the Government might seek to advance new or different arguments.

[4] The State's opposition to deployment of the National Guard appears to stem in part from the State's underlying objections to the activities of federal immigration officers when they make immigration stops and

In sum, I vote to deny the application but would do so on narrow grounds and, at this time, would not reach the broader statutory issues addressed by the Court.

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arrests in Illinois. The State and the Government disagree about whether the immigration officers have violated the Constitution in making certain immigration stops and arrests. The basic constitutional rules governing that dispute are longstanding and clear: The Fourth Amendment requires that immigration stops must be based on reasonable suspicion of illegal presence, stops must be brief, arrests must be based on probable cause, and officers must not employ excessive force. Moreover, the officers must not make interior immigration stops or arrests based on race or ethnicity. Cf. *Whren* v. *United States*, 517 U. S. 806, 813 (1996) ("[T]he Constitution prohibits selective enforcement of the law based on considerations such as race"). This application does not require us to delve into the parties' underlying dispute and to determine whether any particular immigration encounter or series of encounters in Illinois has violated those basic constitutional principles.